Givezy: briefing for legal and tax review

Draft for review, 04/11/2026

Prepared for Yosef, to share with the accountant

Status: test only, nothing live

How to read the status labels

Built and tested	The code exists and automated tests cover it. Where a test needed the real payment provider or SARS, it does not belong here.
Built, not yet proven	The code exists, but it has never run against the real payment provider (beyond the single test donation described in 3.1) or against SARS. It may need changes.
Not built or not decided	Nothing is built, or a decision is still open.

Everything described here runs on a test website with a test database. No real donation has ever been taken. Each statement about how the system behaves has a small grey "Where to check" line naming the file in the code, so a technical reviewer can confirm it. Wording on the website that is quoted here is a draft awaiting Yosef.

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How the numbering works

Sections are numbered 0 to 10 and the appendices A to E. Every question has a number made from its section and its order, for example **Q4.3** is the third question in section 4. All questions are repeated in Appendix A with a line for the answer. Dates are dd/mm/yyyy. Money is in Rand, for example R1 250 and R34.57. Where the code works in whole cents, this document converts to Rand.

1. Summary for busy readers

What Givezy is. A website and phone app where people give to registered South African charities. The donor pays by card on the payment provider's own page (Paystack, a South African payment provider). The gift is split by the provider and goes straight to the charity's own bank account. Givezy also issues the yearly section 18A tax receipt for a charity that has signed a mandate, and prepares the file the charity itself sends to SARS (the IT3(d) report). Givezy has no registered company yet.

Where we are. Test site and test database only. One test donation has been paid end to end in the provider's test mode (02/11/2026). Declined card, monthly giving and refund tests are still to do. Email sending is not set up: emails are only written to a log. The phone app sends people to the website to give, because in-app giving is switched off until Apple and Google confirm in writing.

The money flow in six lines

1. The donor chooses a charity and an amount (minimum R30) and pays by card on the provider's page. Givezy never sees card details.
2. The donor may add a separate contribution to Givezy (unticked by default, minimum R10). Givezy charges no fee on donations.
3. The provider splits the payment: the gift goes to the charity's own bank account through a "subaccount"; the contribution stays with Givezy's provider account. Nothing is pooled.
4. The provider's own charge is carried by the charity, out of its gift. The provider has not yet given us its rates, so we show no figure.
5. A gift counts as paid only when the provider itself confirms the exact amount in rand. A refund or a dispute is held for a person to decide, except a full refund, which marks the gift refunded.
6. After each tax year ends (1 March to the end of February) Givezy issues one s18A receipt per donor per charity, and the charity reports to SARS itself.

The eight questions that matter most

1. **Q3.1** Does the way we run payments need a licence or registration? **Q3.5** and **Q3.6**: the proof-of-concept structure (the founder as sole-proprietor merchant) and the provider's ZAR 1 000 000 cap.
2. **Q4.1** and **Q4.2**: can a platform issue s18A receipts under a signed mandate, and what must the mandate say?
3. **Q4.4** and **Q4.5**: the exact receipt wording and particulars, and whether the full ID number must print (today only the last 4 digits).
4. **Q4.9**: does a card charge the donor chooses to cover form part of the deductible amount?
5. **Q5.1** and **Q5.3**: which SARS Nature of Person a non-profit company, trust or association uses, and whether SARS expects an interim IT3(d) from a charity that receipts once a year.
6. **Q6.1**, **Q6.6** and **Q6.3**: responsible party or operator, what we keep after erasure, and the rules for charities emailing their donors.
7. **Q3.9** and **Q3.7**: who bears refunds and chargebacks, and cooling-off or refund rules for donations and monthly donations.
8. **Q8.1** and **Q8.2**: VAT and the tax treatment of Givezy's own income (donor contributions).

What we ask of each of you

Yosef (attorney). Answer the questions marked Attorney or Both in Appendix A. Approve or amend the draft wording in 7.5. Advise on the proof-of-concept structure before the first live donation, and on the receipt mandate.

The accountant. Answer the questions marked Accountant or Both. Check the SARS assumptions in 5.5 and the money flow in section 3. Advise on VAT and tax for Givezy (section 8) and on how a charity should book the gift, the contribution and the provider's fee.

2. What Givezy is and who is who

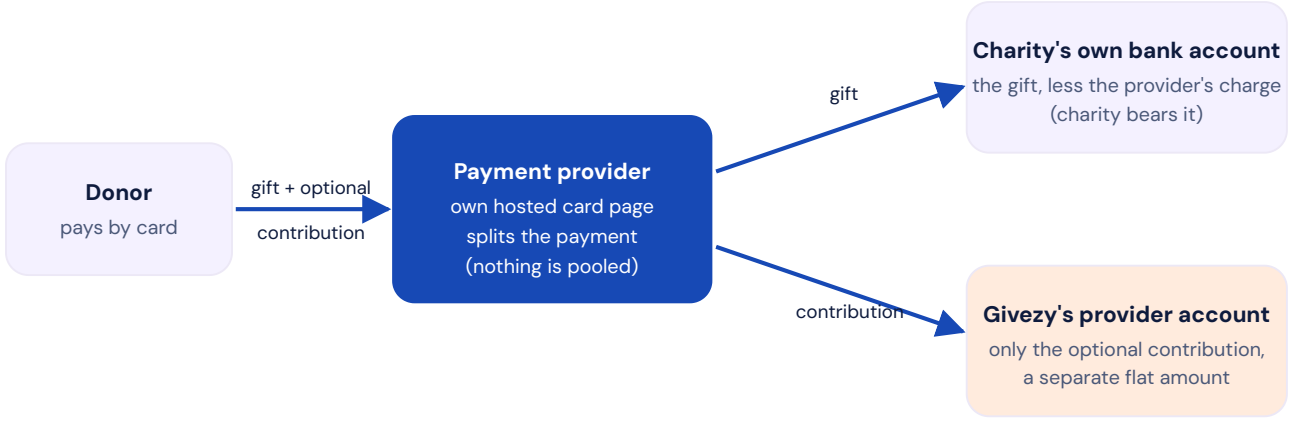
Givezy is run by the founder, Yehuda. There is no registered company yet: registration and the company's own email come after a first proof of concept (see 3.5 and section 8). Where this document says "we" it means Givezy.

2.1 The parties

Party	What it does	Personal information it handles
Donor	Chooses a charity and an amount, pays by card, may ask for an s18A receipt and may add a contribution to Givezy. Must be 18 or older.	Name, email, optional phone; for an s18A receipt: SA ID number, optional income tax number, address.
Charity	A South African charity (NPO or PBO) that applies, is checked by hand and is listed. Its gifts go to its own bank account. It may sign a receipting mandate with Givezy. It reports its own receipts to SARS.	Its donors' details, and its own contact people and bank details.
Givezy	Runs the website and app, checks charities, issues s18A receipts under the mandate, builds the SARS files for each charity, and takes the optional contribution. It is not a bank and does not hold a charity's gift.	Everything in section 6.
Payment provider	Paystack, a South African payment provider. Shows its own card page, takes the payment, splits it, pays the charity's share to the charity's bank account and the contribution to Givezy's account with it. During the proof of concept the account is the founder's personal sole-proprietor account.	Card details (never seen by Givezy), donor email, amount, the charity's bank details.
Supabase	Database, sign-in by emailed code, and file storage. Project in Frankfurt (eu-central-1).	All personal information in section 6; ID numbers and bank numbers are encrypted before storage.
Vercel	Hosts the website and runs the daily scheduled job. Frankfurt (fra1).	Passes everything through; logs.
An email provider	Resend is planned for emails (receipts, confirmations, sign-in codes). Not set up. Today emails are only written to a log, without personal details.	Recipient email address, message text, receipt PDFs.
Apple and Google	Run the app stores. In-app giving is switched off until both confirm in writing that it is allowed; meanwhile the app opens the website to give.	Developer accounts only; the app never handles card details.

Where to check: `src/config/platform.ts`, `src/lib/gateway/paystack.ts`, `vercel.json`, `src/lib/email/index.ts`, `docs/go-live-checklist.md (hosting, email, app sections)`

2.2 How the money moves



Givezy sends the instructions (amounts, which charity). Givezy never holds the charity's gift.

Figure 1. The gift and the contribution travel in one card payment but are settled to different accounts by the provider.

2.3 Worked example: a once-off gift of R500

These figures were produced on 04/11/2026 by running the code that prices a gift (`priceDonation` with the settings in `src/config/platform.ts`), not by hand. The donor chooses whether to add a contribution; the R50 below is only an illustration, because there is no default and no suggestion in the code.

Line	A. Gift only	B. Gift plus a R50 contribution
The donor pays in total	**R500**	**R550**
Gift to the charity (before the provider's charge)	R500	R500
Contribution to Givezy	R0	R50
Card charge the donor chose to cover	R0 (box not shown: rates unknown)	R0 (box not shown: rates unknown)
The provider's own charge	To be confirmed with the provider	To be confirmed with the provider
Who bears the provider's charge	The charity, out of its gift	The charity, out of its gift
The charity's bank account receives	R500 less the provider's charge (to be confirmed)	R500 less the provider's charge (to be confirmed)
Givezy's account receives	R0	R50 (the flat charge; to be read off the provider's dashboard)
Amount printed on the s18A receipt	R500	R500 (the contribution is never on a receipt)

> **Why no provider figure.** The three provider settings are empty on purpose until the provider gives us its rate sheet: percentage `null` , fixed amount `null` , and whether those rates include VAT `null` . We do not guess a rate. Because they are empty, the "cover the card charge" box is hidden from donors. When the rates exist, the code adds the smallest amount that leaves the charity with the full R500 after the provider charges its percentage plus fixed amount on the whole payment, rounded up to the cent. A donor's contribution under R10 is refused ("The contribution is below the minimum.").

Who bears the provider's fee. The setting `gatewayChargePaidBy` is `"charity"` (decided 14/10/2026): the provider's charge comes out of the charity's gift. On the provider's side this is requested per payment with a flat "transaction charge" equal to the contribution and the fee bearer set to the subaccount.

Where to check: `src/lib/fees.ts`, `src/lib/donations/card-charge.ts`, `src/lib/gateway/paystack.ts (splitFields)`, `docs/legal-briefing/samples/worked-example.json`

2.4 The settings that define the numbers

All fee, VAT, minimum and tax-year values live in one file and nowhere else. Quoted exactly:

Setting	Value in the code	Meaning
minDonationCents	3 000 (R30)	Smallest gift to a charity.
minContributionCents	1 000 (R10)	Smallest optional contribution to Givezy, when the box is ticked.
maxDonationCents	100 000 000 (R1 000 000)	Largest single gift accepted online.
fees.gatewayChargePaidBy	"charity"	The charity bears the provider's charge.
fees.gatewayPercent / gatewayFixedCents / gatewayRatesIncludeVat	null / null / null	Provider rates: not yet supplied.
vat.enabled / vat.ratePercent	false / "15"	VAT is off until Givezy is VAT-registered; the rate is 15%.
taxYear.startMonth	3	Tax year starts 1 March and ends at the end of February.
donor.minimumAge	18	Donors must be 18 or older.

Setting	Value in the code	Meaning
applicationReviewWorkingDays	2	We promise to review a charity's application within 2 working days.

Where to check: `src/config/platform.ts`

There is no platform fee and no processing fee on donations (decision of 08/10/2026). The database still has columns for a platform fee and VAT on a fee; the code writes R0 into both on every donation.

Where to check: `src/lib/donations/checkout.ts (platform_fee_cents: 0, fee_vat_cents: 0)`, `supabase/migrations/20261006000001_core_schema.sql`

3. Money flow and licensing questions

3.1 Split settlement straight to the charity

What	Status	Where to check
Each approved charity is registered with the provider as a "subaccount" (its own bank account), by a platform administrator pressing Connect. Each bank is mapped to the provider's own bank name.	Built, not yet proven	src/lib/gateway/paystack.ts (createCharityAccount, BANK_NAMES)
A payment is started with the charity's subaccount, a flat "transaction charge" equal to the contribution, and the provider's fee borne by the subaccount (the charity). Without a payout account the payment is refused, so a gift can never land with Givezy by mistake.	Built, not yet proven	src/lib/gateway/paystack.ts (splitFields, splitOrNone)
A gift is marked paid only when we ask the provider ourselves and it confirms success, in ZAR, for exactly the total we expected. Any other amount is held for a person and logged as an amount mismatch.	Built and tested	src/lib/donations/confirm.ts; tests/payment-persistence.test.ts, tests/donation-confirmation.test.ts
The split amounts and which side bore the fee, read off the provider's own dashboard.	Not built or not decided	docs/go-live-checklist.md (Paystack test run, 02/11/2026)
A charity that is not connected shows "isn't taking online donations yet".	Built and tested	src/lib/donations/charity.ts

What has been proven. On 02/11/2026, in the provider's test mode, the demo charity was connected (to the founder's own bank account, as a stand-in) and a test gift of R50 with a R10 contribution (R60 in total) was paid with the provider's test card from the app. The provider's "payment succeeded" message arrived two seconds later and was processed once; the donor's confirmation and the charity's notification were written to the log. **Not yet done:** reading the split off the provider's dashboard (the site keeps only a trimmed copy of the message on purpose), the declined-card test, a monthly gift, a refund, a dispute, the deposit report, and the bank-account check. The provider's documents say a bank-account check costs R3 per successful request; the site runs one whenever an administrator changes a charity's bank details, which needs the founder's approval before launch.

Where to check: `docs/go-live-checklist.md`, `docs/paystack-test-script.md`

3.2 What Givezy receives, and when

- **Only the optional contribution.** It is a flat amount per payment and arrives in Givezy's provider account. It is never part of the charity's line, never on a receipt, and the charity never sees it.
- **Never a charity's gift.** With splitting switched on (`PAYSTACK_SPLITS=yes`) a payment for a charity without a payout account is refused.
- **Gifts a charity records by hand** (EFT, cash, debit order, imports) do not pass through Givezy at all, and carry no Givezy fee or contribution. Whether Givezy should charge for receipting them is undecided.
- **Timing.** The provider decides when it pays out to the charity's bank and to Givezy. The settlement schedule is not recorded anywhere in our documents: to be confirmed with the provider. The charity's Deposits page lists each payout with its gifts, the provider's fee and the amount that reached the bank, and checks that every gift less its fee equals the deposit.

Where to check: `src/lib/donations/checkout.ts`, `src/lib/donations/payouts.ts`, `src/lib/charity/deposits.ts`, `docs/go-live-checklist.md (Recorded gifts and fees; Deposit report)`

Built, not yet proven The deposit report reads the provider's settlement answers. The provider's field names for settlements, and whether it filters by subaccount, are not confirmed; the code leaves out any settlement not shown to be the charity's.

3.3 Refunds and chargebacks

Givezy has no instruction that sends a refund to the provider; refunds are made in the provider's own dashboard. What the code does when the provider reports one:

Event reported by the provider	What the system does	Who decides
A full refund (the whole amount the donor paid, in rand)	Marks the gift "refunded". It then drops out of the charity's totals and receipts. If the gift is on an issued s18A receipt, that receipt is withdrawn at once with a reason, and the donor's other gifts go back on the charity's list for a corrected receipt. The donor is not told.	Automatic, as bookkeeping. No money moves.
A partial refund, a refund with no amount or in another currency, or one we cannot match	Held on Admin, Payments with buttons "Mark refunded" and "Mark charged back", each with a confirmation, logged. A partial refund leaves the whole amount on the receipt (undecided).	A Givezy administrator.
A dispute opened (chargeback)	The gift is not changed. Any monthly donation it belongs to is paused. Givezy is emailed at once, because the provider sets a deadline for evidence.	A Givezy administrator answers in the provider's dashboard.
A dispute resolved	Logged only; held for a person. A dispute the charity wins leaves the gift "charged back" (undecided whether it may return to paid).	A Givezy administrator.
A person marks a gift charged back	The monthly donation it belongs to stops and the saved card is dropped. Any s18A receipt carrying it is withdrawn.	A Givezy administrator.

Where to check: `src/lib/donations/reverse.ts`, `src/app/api/webhooks/[gateway]/route.ts`, `src/app/admin/payments/`, `tests/donation-reverse.test.ts`

Built, not yet proven The provider's field names for refund and dispute messages are not confirmed; unrecognised messages are held, never acted on. The Terms still say the refund policy is "[to be confirmed]". See Q3.9 and Q3.7.

3.4 Monthly donations and the authorisation tick

The monthly box on the donate form says that the first payment is today, then the same amount on the same day each month (the last day in shorter months) from the same card, until the donor cancels; card payments only. The donor must tick:

> "I authorise Givezy to collect R[total] from my card every month until I cancel."

Where to check: `src/app/c/[slug]/donate/donate-flow.tsx (monthly_authorised)`, `src/lib/donations/checkout.ts (consents insert)`

- The tick is stored as a consent record with the policy version and the time. The provider returns a reusable card authorisation code; we keep it encrypted. We never hold the card number.
- A daily scheduled job (06:15 UTC, 08:15 Johannesburg) collects what is due. A declined collection is retried about 24 hours and about 72 hours later (three attempts in all), then the monthly donation stops and the donor is emailed.
- The donor can pause, resume, cancel, or replace a declined card ("Update my card") on the website or in the app. A chargeback pauses or stops it. A collection the provider took for a different amount stays pending for a person.
- **Built, not yet proven** Not yet run against the provider. **Open:** a donor agrees to a fixed total, but the card charge (when rates exist) is recomputed each month; the draft emails for "could not collect" and "has stopped" are not approved; the terms for card-on-file are for Yosef.

Where to check: `src/lib/donations/monthly-job.ts`, `src/lib/donations/schedule.ts (MAX_ATTEMPTS = 3, RETRY_AFTER_HOURS = 24, 72)`, `src/lib/donations/recurring.ts`, `vercel.json`, `tests/monthly-job.test.ts`, `tests/monthly-schedule.test.ts`

3.5 The proof-of-concept structure

There is no registered company. Registration and the company's email come after a first proof of concept. For the proof of concept the plan is a payment provider "Starter Business / Sole Proprietorship" account in the founder's personal name. It needs the founder's ID, a bank account and a bank confirmation letter. The provider states a lifetime collection cap of ZAR 1 000 000 for South African sole proprietorships, with an upgrade to a registered business later. (This plan and the cap were supplied by the founder. They are not recorded in the code or the project documents, and the cap should be checked on the provider's own page.)

What this means in practice, so that the risks can be named:

- The provider's merchant, and the party it can claim refunds, chargebacks and fees from, is the founder personally.
- Contributions land in the founder's account. Charities' gifts do not: they settle straight to the charities' accounts.
- The Terms and Privacy Policy cannot yet name an operator (they show "[to be confirmed]" for the company name, number and address and for the Information Officer).
- Our own go-live checklist and launch plan still assume company documents for the provider's business verification. They will be updated to match this plan.
- What happens to the provider account, the connected charity accounts and the contracts when the company is registered is not yet known.

Where to check: `src/config/legal.ts`, `docs/go-live-checklist.md (Givezy's registered details; Paystack items)`, `docs/launch-plan.md`

3.6 The dedication, message and label fields

A donor can type three pieces of free text with a gift: a **private label** (up to 80 characters; only the donor sees it), a **dedication** ("in honour of" or "in memory of" and a name of up to 80 characters), and a **message to the charity** (up to 500 characters). The donor and the charity see the dedication and the message; they are never printed on an s18A receipt and they are wiped when the donor asks for erasure. We found no public page that shows a donor's name, message or dedication. "Give anonymously" hides the donor's name from public pages, campaign lists and live totals, but not from the charity.

The text that *is* public is what charities publish: their profile, up to 12 photos, updates of up to 500 characters and campaigns. It is published as soon as it is posted (profile content is checked at approval), and Givezy administrators can remove any of it. Typed text is stripped of control and direction-override characters; there is no word filtering.

Where to check: `src/lib/donations/dedication.ts`, `src/lib/donations/validation.ts`, `src/app/c/[slug]/page.tsx`, `docs/decisions.md (Dedications; Real photos and updates)`

3.7 Questions on money flow and licensing

Questions Q3.1 to Q3.11 are set out in Appendix A, with the reason for each and space for the answer.

4. Section 18A receipts

This is the core for both readers. A section 18A receipt lets a donor claim a tax deduction for a gift to an approved public benefit organisation. Givezy issues the receipt *for* the charity, under a mandate the charity signs.

What	Status	Where to check
The rules for who can get a receipt and what is on it, enforced inside the database function that issues it (one receipt, one transaction)	Built and tested	supabase/migrations/20261009000003_issue_receipts.sql, 20261009000008_receipt_identity.sql; tests/receipts-db.test.ts
Planning, numbering, void and re-issue, two approvals before anything is issued	Built and tested	src/lib/receipts/plan.ts, issue.ts, runs.ts; tests/receipts.test.ts, tests/receipt-runs.test.ts
Printing the PDF with Chrome on the hosted site; emailing it to the donor	Built, not yet proven	src/lib/receipts/pdf.ts, email.ts (email provider not set up)
The statement wording and the list of particulars	Not built or not decided	src/config/receipts.ts (draft, for Yosef)
The receipting mandate text	Not built or not decided	none in the repository

4.1 What Givezy issues, and the switch

For a charity that a platform administrator has confirmed as s18A-approved *and* that has a signed mandate, Givezy issues one receipt per donor for all paid gifts in the tax year where the donor ticked "I want an s18A receipt", including gifts the charity recorded by hand (EFT, cash, debit orders, imports). The receipt amount is the sum of the gift amounts only, worked out inside the database, never passed in. Real receipts are switched off: the issuing job refuses to write anything until two settings (`RECEIPTS_ENABLED=yes` and `RECEIPT_WORDING_CONFIRMED=yes`) are set, so until Yosef confirms the wording every receipt is a marked draft. The first real run would be March 2027, for the 2026/27 tax year.

Where to check: `src/config/receipts.ts`, `supabase/migrations/20261009000003_issue_receipts.sql`, `docs/launch-plan.md`

4.2 The mandate: how it is recorded

- A charity that holds an s18A reference uploads the SARS s18A approval letter and the signed receipting mandate, with the date it was signed. Givezy sends the mandate to the charity to sign; there is no template in the repository.
- A platform administrator (with the second step) checks the documents and ticks "s18A confirmed" and "mandate confirmed". The system then stores the mandate's signing date (midnight Johannesburg time of that date) and the file's location. A charity cannot set these fields itself: a database rule refuses it.
- A charity can issue only when it is s18A-confirmed and has a mandate date. A gift paid *before* the mandate date is never receipted.
- The administrator can also set up s18A later for a charity approved without it; the charity is then emailed.

Where to check: `src/app/admin/charities/[id]/actions.ts`, `src/app/charity-admin/[id]/application/actions.ts`, `supabase/migrations/20261007000001_charity_onboarding.sql`, `src/lib/receipts/plan.ts (charityCanIssue)`

4.3 When, how often, and numbering

- **Once a year per donor, after the tax year ends.** The tax year runs from 1 March to the end of February and is named by the year it ends: 2026/27 is 01/03/2026 to 28/02/2027 (stored as 2027, as SARS numbers it). The job refuses to run before the year has ended, and a charity can approve only the last two closed years.
- **Two approvals.** The charity checks and approves its list (donor, number of gifts, amount, total) on its dashboard; Givezy then signs off. If the list changed in between (a refund, a late payment), nothing is issued and it goes back to the charity. A fingerprint of the list is compared.
- **Numbering.** `CODE-2027-0042` : the charity's short code, the tax year, and a four-digit running number that is sequential per charity. The number is taken from a counter inside the same database transaction that writes the receipt and is never reused; a withdrawn receipt keeps its number.
- **Delivery.** The PDF is emailed to the donor (once email is set up) and is available in the donor's account and app. A donor's "tax pack" is a separate summary marked as not a tax receipt.

- **A gift confirmed after the receipt was issued** is left for a person: withdraw the receipt and issue it again with the late gift on it.

Where to check: `src/lib/receipts/plan.ts (taxYearIsClosed)`, `src/lib/receipts/runs.ts (fingerprintPlan, closedTaxYears)`, `supabase/migrations/20261006000001_core_schema.sql (next_receipt_number)`, `supabase/migrations/20261015000005_receipt_numbers_past_9999.sql`, `src/lib/dates.ts`

4.4 What is printed

The receipt is two A4 pages built from a stored snapshot of every printed field, so the PDF can be reproduced exactly later. A sample is in Appendix B.

- **Page 1, the certificate:** receipt number; title "Section 18A receipt"; the charity's legal name, NPO number, PBO number, s18A reference and address; the donor's name and type (Individual, Company or Trust); registration number (company or trust, in full); South African ID number and income tax number (last 4 digits only); the donor's address; date or dates of donation; nature of donation; number of donations; the amount in figures and in words; the tax year; the date issued; and the statement below. Footer: "Issued through Givezy on behalf of [charity], PBO number […]. Amounts are the donations only."
- **Page 2, the donation summary:** every gift with its reference (GZ-…), the date received, the nature and the amount, with the total.
- **Not printed:** a signature or signer's name, the charity's logo, phone or email, the charity's trading name, and the donor's email or phone.

The statement, word for word (draft, not confirmed by Yosef):

> "This receipt is issued by {charity} for the purposes of section 18A of the Income Tax Act, 1962, for the donations listed on this receipt, received during {period}. {charity} confirms that these donations have been or will be used exclusively for the objects of the organisation in carrying on its public benefit activities."

{charity} is replaced by the charity's legal name and {period} by the tax year dates, for example "01/03/2025 to 28/02/2026".

Where to check: `src/lib/receipts/html.ts`, `src/lib/receipts/details.ts`, `src/config/receipts.ts`, `src/lib/receipts/words.ts; tests/receipt-words.test.ts, tests/receipts.test.ts`

4.5 Nature of donation, and a known weakness

For online gifts the nature of donation prints "Card (online)". For gifts a charity recorded by hand it prints the method it recorded: "EFT (bank transfer)", "Cash", "Debit order", "Another giving programme" or "Other". **The weakness:** every online gift is printed as "Card (online)" and the text is frozen in the receipt. That is true while the provider takes cards only; it would be wrong for life if instant EFT or debit orders are added online. The fix (storing the method on the gift when it is confirmed) is not built.

Where to check: `src/lib/receipts/details.ts (donationNature)`, `src/lib/charity/recorded-gifts.ts (RECORDED_METHODS)`, `docs/go-live-checklist.md (Receipt "nature of donation")`

4.6 Donor ID and tax numbers, and the covered card charge

- **At checkout** a donor who ticks s18A must give an SA ID number (13 digits, a real date, check digit) and an address; an income tax number is optional (checked with SARS's Modulus 10 rule). A company gives its CIPC registration number and a trust its trust number. The full numbers are encrypted (AES-256-GCM) with a key held outside the database; only the last 4 digits are stored in plain text.
- **On the receipt** only the last 4 digits of an ID or tax number print; a company or trust registration number prints in full. Printing full numbers would mean decrypting at issue time and keeping them in the receipt: see Q4.5.
- **The card charge a donor covers** (when the provider's rates exist) is paid to the charity's line, but the receipt sums gift amounts only. This was built that way because a covered charge is not a gift; it is a question for you: Q4.9.

Where to check: `src/lib/donations/checkout.ts (encrypt, receiptIdentity)`, `src/lib/crypto.ts`, `src/lib/sa-id.ts`, `src/lib/sars-numbers.ts`, `supabase/migrations/20261009000003_issue_receipts.sql (sum of amount_cents)`

4.7 Void and re-issue

- An issued receipt cannot be edited or deleted. A database rule allows only two changes: attaching the PDF once, and withdrawing it with a reason.
- A platform administrator withdraws a receipt with a written reason of at least five characters; the audit log records who and why. The gifts on it then go back on the charity's list, and a replacement is issued after the charity

approves and Givezy signs off.
- A full refund or chargeback withdraws the receipt automatically (3.3).
- **Weaknesses:** a withdrawn receipt sends the donor no notice, so the PDF already in their inbox still looks valid; a replacement is not automatically linked to the withdrawn receipt; a part-refunded gift keeps its whole amount on the receipt.

Where to check: `supabase/migrations/20261006000001_core_schema.sql (guard_receipt_immutable)`, `supabase/migrations/20261009000016_review_fixes.sql`, `src/app/admin/receipts/actions.ts (voidReceipt)`, `tests/receipts-db.test.ts`

4.8 One receipt per donor identity, per charity, per year

A unique rule in the database allows only one issued receipt per charity, donor, identity and tax year. The identity is a keyed fingerprint of the ID, tax or registration number typed at checkout (never the number itself), so two people who give with one email address get separate receipts. If one person typed different numbers, two receipts are issued and listed for a person to check.

Where to check: `supabase/migrations/20261009000008_receipt_identity.sql`, `src/lib/crypto.ts (receiptIdentity)`, `src/lib/receipts/plan.ts`

4.9 SARS particulars: what the receipt prints

The list of particulars below is the one recorded in our go-live checklist from the SARS notice effective 1 March 2023 (GN 3631) and section 18A(2). We could not open the gazette from the build environment, so Yosef must check the list itself.

Particular	Printed?	Where / how
Charity's name	Yes	Page 1: legal name (English)
Charity's address	Yes	Page 1. The job refuses to issue a receipt without it
Charity's trading name, where different	No	Only the legal name prints
Charity's NPO / PBO / s18A reference	Yes, those held	Page 1, under the charity's name
Donor's name	Yes	Page 1
Donor's address	Yes	Page 1. Refused without it
Donor's nature (natural person, company, trust)	Yes	Page 1: "Donor (Individual / Company / Trust)"
Donor's identification or registration number	Partly	Individual: last 4 digits of the ID. Company or trust: full registration number
Donor's income tax reference number	Partly	Last 4 digits only, when given
Donor's contact details	No	Email and phone are left off
Date(s) and amount of the donation	Yes	Dates on page 1; each gift on page 2; total in figures and in words
Nature of the donation	Yes	Page 1 and page 2 (see 4.5)
Statement that the donation has been or will be used exclusively for the objects	Yes (draft)	Page 1, quoted in 4.4
Receipt number and date issued	Yes	Page 1
Signature and signer's name	No	A real certificate from another charity had one; for Yosef to decide who signs when Givezy issues under a mandate

Where to check: `src/lib/receipts/html.ts`, `src/lib/receipts/details.ts (missingForSars)`, `docs/go-live-checklist.md (SARS s18A receipt particulars since 1 March 2023)`

4.10 Questions on receipts

Questions Q4.1 to Q4.11 are set out in Appendix A, with the reason for each and space for the answer.

5. IT3(d) report to SARS

Written mainly for the accountant. A charity that issues section 18A receipts must report each receipt to SARS on a return called IT3(d). Givezy does not submit anything to SARS. It prepares the data for each charity, and each charity (or its accountant) submits it.

5.1 What SARS requires

- **Documents we followed:** SARS External BRS "IT3 Data Submission", version 4.0.0D-10 of 07/10/2022 (272 pages), and the eFiling guide GEN-ENR-01-G03 Revision 6 (41 pages, effective 07/04/2026). Our reading of both, page by page, is in two files in the repository. The BRS PDF has tracked changes: struck-through rules still print as live text, so every IT3(d) page was checked visually and deleted rules were not implemented.
- **Who reports:** entities that received donations and issued receipts report those receipts. Where a charity received no donations a "nil reporting declaration" is required (Guide p.4).
- **How:** the guide describes a cycle of "bi-annual and annual" submissions (Guide p.3), but *neither document states IT3(d) due dates*. Up to 50 IT3(d) certificates can be typed into the IT3-01 form on eFiling (Guide p.14; the guide also says 20 in one place, p.4). Larger submissions use a data file sent by HTTPS or Connect Direct, which needs the organisation to be enrolled and activated for third-party data on eFiling, and a 144-character Source Identifier from SARS. The declaration (IT3-02) is made at the submitting entity's level.
- **Test environment:** the BRS has a test indicator and says SARS publishes a test Source Identifier on its website; the guide does not describe the test environment.

Where to check: `docs/sars/it3d-spec.md`, `docs/sars/it3d-decisions.md`

5.2 What Givezy builds for each charity

What	Status	Where to check
A **problems check** for the chosen tax year and period: every receipt is checked against the BRS rules. A blocking problem (for example a missing address, a donor ID that fails the check digit, a character SARS cannot hold) stops the data file; a warning does not. Each problem says where to fix it.	Built and tested	src/lib/receipts/it3d.ts; tests/it3d.test.ts, tests/sars-numbers.test.ts
An **eFiling capture sheet** (.xlsx) for up to 50 receipts: the charity's block once, then one row per donation in the IT3-01 form's order, then totals. It still downloads when there are problems; each affected row says "Fix before submitting" or "Check".	Built, not yet proven	src/lib/receipts/it3d-sheet.ts; not yet typed into eFiling by an accountant
The **SARS data file** (.psv, pipe-separated, Latin-1) for submission by HTTPS. Refused while any blocking problem remains.	Built, not yet proven	src/lib/receipts/it3d.ts (buildIt3d, it3dBytes); never sent to SARS or its test environment
Only the charity's **owner** can download; second step required; ten downloads in ten minutes at most; every download audit-logged (counts and which fields changed, never an ID number or the Source Identifier). A platform administrator counts as owner of every charity.	Built and tested	src/lib/receipts/it3d-request.ts; src/lib/charity/team.ts (memberRole)

What	Status	Where to check
The charity's own SARS details (income tax reference, legal form as SARS's Nature of Person, registration number) are kept in a private table, written only by the server after checking the person is the owner.	Built and tested	supabase/migrations/20261103000001_it3d_charity_details.sql

Record types and field counts (from the BRS; the sample in Appendix C has the same counts):

Record	What it holds	Fields	How many in a file
GH	File header: date, version, test or live, channel (HTTPS), the Source Identifier, Givezy as the source system, contact person	18	1
SE	Submitting entity: the charity, its SARS reference and identification number, address, contact	25	1
RE	Reporting entity: the charity as the s18A organisation, with its PBO number and a null-declaration flag	29	1
DE	Donor entity: one per donor identity (name, ID or registration number, date of birth, address, contact)	32	one per donor
DR	Donation record: our receipt number, nature (CASH or IN SPECIE), date paid, Rand value	10	one per donation
T	Trailer: number of body records, an empty hash, the sum of all Rand values	4	1

Where to check: `docs/sars/it3d-spec.md (sections 3.1 to 3.6)`, `docs/legal-briefing/samples/sample-it3d-result.json`

5.3 Who submits, and the twice-a-year cycle

- **Each charity submits its own file.** It is the submitting entity and the only reporting entity in its file (decision of 02/11/2026). Givezy is not a submitting entity, and no charity has yet been enrolled for third-party data.
- **Due dates: what we know and do not know.** Our understanding is an interim IT3(d) for receipts issued 1 March to 31 August, due 31 October, and an annual one for the full tax year, due 31 May, plus a nil declaration when nothing was issued. This comes from accounting-firm and PBO-support sources. SARS's own page could not be reached from where we work, and the BRS and the guide do not state it. **Please confirm the 2026/27 dates.**
- **The consequence for us.** Givezy issues receipts once a year, after the tax year ends. So the interim file (first six months) is empty and, if SARS expects a nil declaration, it is made on eFiling, not with a file; the page says so. The alternative is receipting twice a year, which would need a mid-year receipt run. That is undecided (Q5.3).
- **Nil declarations.** With no donations no file can be built (the trailer's total must be at least R0.01), so a nil declaration is made on eFiling.

Where to check: `src/app/charity-admin/[id]/receipts/sars/page.tsx`, `docs/go-live-checklist.md (IT3(d) twice a year)`

5.4 Donor identification, old receipts and privacy

- **An SA ID number is now required for s18A** (decision of 03/11/2026). A tax number alone is not accepted by SARS: the donor identification field is mandatory and the "internal number" type is not allowed (BRS p.225). An individual gives an SA ID number (income tax number optional); a company its CIPC number; a trust its trust number.
- **Old receipts with only a tax number** cannot go in the file and show as blocking problems. Whether to report them by hand on eFiling or leave them out is undecided (Q5.9).
- **Monthly donors** who set up an s18A monthly gift before 03/11/2026 with only a tax number: each new monthly gift copies those details, so their receipts would keep showing as a problem. We chose not to remove s18A from their gifts; instead a notice and an SA ID field appear in that monthly donation's card on their account page, with an "ask first" confirmation. An email nudge is not built because email sending is not set up.
- **Privacy consequence.** The charity's owner downloads full ID numbers for SARS and for that purpose only; the page shows only the last 4 digits. Draft wording added to the Privacy Policy on 03/11/2026 says so, and a home page card says "Your ID stays off the dashboard"; both await Yosef, and the charity terms need a line that the charity keeps those files safe and uses them only for SARS.

- A donor who asked for erasure cannot be put in a file; their receipt shows as a blocking problem to report from the charity's own records.

Where to check: `src/lib/receipts/it3d.ts`, `src/lib/donations/monthly-id-nudge.ts`, `src/app/privacy/page.tsx`, `docs/go-live-checklist.md (Privacy wording; Monthly donors who set up)`

5.5 Every assumption where the SARS document is silent or unclear

Taken from `docs/sars/it3d-decisions.md`, with the BRS page ("p.") or guide page. "Spec Q" is the numbered question list in `docs/sars/it3d-spec.md`. All of these were written without ever sending a file to SARS.

Topic	What we chose	Ref	A SARS test or the accountant must confirm
Field order in a record	BRS table order (ascending field number; GH has a gap from 10 to 14)	p.203	SARS accepts this order (open 1, Spec Q1)
Body order	All RE, then all DE, then all DR	p.16 d, p.18	SARS accepts grouped, not nested, order (open 1, Spec Q2)
Line ending	CR LF after every record, the trailer too	p.17	CR LF counts as "a carriage return" (open 2, Spec Q3)
Encoding	Latin-1 bytes. A character outside Latin-1, or a control character, is a blocking problem and is never changed silently	p.16 h	No doubt recorded
Pipe, leading space, too long	Blocking problem to fix; nothing is ever shortened. Trailing spaces are trimmed	p.16 f, p.19 n	No doubt recorded
File Hash Total (603)	Left empty: SARS accepts it with a warning. The MD5 input (line endings, encoding, case) is not defined	p.234 to 235	What to hash, and the date the field becomes mandatory (open 4 and 10, Spec Q4, Q21)
File name	`I3D_1_[field 216]_[Unique File ID]_[CCYYMMDDThhmmss].psv`	p.20	Field 216 is meant where the BRS says "field 28" (open 3, Spec Q5)
Unique File ID (5)	A random UUID (letters, digits, dashes, no underscores)	p.205 to 206	No doubt recorded (Spec Q22)
Submission Tax Year (203)	The year the tax year ends: 01/03/2026 to 28/02/2027 is 2027	p.210	That this is what SARS means (Spec Q14)
Periods	"First six months" (1 March to 31 August) and "Full tax year"; only gifts whose Johannesburg paid date is inside the period	Guide p.3, p.27	Whether SARS expects a bi-annual file from annual receipts, and the due dates (open 8, Spec Q15)
Unique Numbers	RE = RE-[charity id]-[tax year]; DE = DE-[charity id]-[year]-[donor key]; DR = DR-[donation id]. Stable across files so a re-send is recognised. One DE per donor identity in a file	p.215, 222, 232	A second file for the same year may be answered as a duplicate (code 500) (open 12)
Record Status	Always N (new). Corrections (C) and deletions (D) are not built; corrections are made on eFiling	p.214	How a filed record is corrected (open 9)
Row Number	1 to n across all body records	p.215 to 216	No doubt recorded
Header (GH)	Test indicator chosen at download (default Live); I3D; HTTPS; version 1; create time in Johannesburg time; Source System "Givezy"; contact = the charity's contact person	p.205 to 209	No doubt recorded
Source Identifier (10)	Typed by the person downloading, exactly 144 characters, sent by POST, used for that file only, never stored or logged	p.208	SARS supplies it; a test one is published on SARS's site
Phones	Digits only, national numbers start 0, international 00. A number starting 06, 07 or 08 goes in the cell field, anything else in the telephone field with 999999999999999 as the cell, as SARS instructs	p.213, 221, 231	No doubt recorded
Email	The email, or NO@EMAIL.COM when there is none or it breaks the 80-character rule (with a note)	p.214, 231	No doubt recorded

Topic	What we chose	Ref	A SARS test or the accountant must confirm
Charity and donor address	Postal fields only (line 1, line 2, suburb as line 3, city as line 4, postal code); physical fields empty (BRS needs at least one of the two)	p.219 to 221, 229 to 231	No doubt recorded
Submitting entity identification	OTHER_CO: type 004 with the CIPC number. INTERVIVOS_TRUST: type 007 with the trust number. Any other legal form: a blocking problem ("Ask your accountant which number to use"); the capture sheet still downloads	p.211 to 212	Which number an association, other entity or government body uses (open 5)
Charity's Nature of Person	A charity chooses among the five values field 306 allows: Other company, Trust (any type), Association not for gain, Other entity, Government entity. The BRS does not say which a non-profit company uses	p.216, 246	Which one an NPC uses (open 4, Spec Q9)
Individual donor	INDIVIDUAL, type 001, ID number. Initials = first letter of each given name; Names = given names one space apart; Surname = last name	p.224 to 227	No doubt recorded
Date of birth (415)	Taken from the ID number: 1900s when YY is greater than this year's two digits, otherwise 2000s	p.226	The BRS has no rule for an unknown date (Spec Q11)
Donor tax number (414)	Sent when it passes Modulus 10 and starts with 0, 1, 2, 3 or 9; otherwise left empty (allowed for now) with an amber note	p.226	The date the field becomes mandatory (open 10)
Company donor	**Assumption:** reported as PRIVATE_CO (unlisted company) with type 004 and the CIPC number, because we do not ask whether a company is listed or a close corporation. Amber note on the page	p.246	Listed companies and close corporations (open 6)
Trust donor	INTERVIVOS_TRUST, type 007, the trust number	p.246, 263	No doubt recorded
Donor with no ID	Blocking problem: the identification field is mandatory and the internal-number type is forbidden	p.225	Old tax-number-only receipts: by hand on eFiling or left out (open 7)
Nature of Donation (508)	CASH for every gift (card, EFT, cash, debit order and another programme are all money). A recorded gift of method "Other" could be goods: sent as CASH with an amber note to report IN SPECIE if it was goods	p.233	That CASH is right for "Other" (Q5.10)
Date Paid (509)	The gift's paid date in Johannesburg time	p.234	No doubt recorded
Rand Value (510)	Two decimals, no separators, "0.50" under a Rand	p.234	No doubt recorded
Which donations	Gifts on the charity's *issued* receipts for the tax year (withdrawn receipts left out), still paid (refunded and charged-back left out), paid inside the period. Gifts the charity recorded count too	none	That this matches what SARS expects to see
Names and address source	The gift's own checkout details (newest gift on the receipt), because the receipt snapshot joins name and address into lines and SARS wants them apart. The receipt number comes from the snapshot	none	No doubt recorded
Trailer	602 = number of body lines; 603 empty; 604 = sum of all Rand values	p.234 to 235	See File Hash Total
No donations	No file is built (604 must be at least 0.01). The page says a nil declaration is done on eFiling	p.235	How a nil IT3(d) is sent (open 8, Spec Q13)

Validators. The Modulus 10 rule (Appendix I of the BRS), the SA ID rule (Appendix J) and the company number rule (Appendix K, `CCYY/NNNNNN/NN`) are implemented as written. SARS's own examples pass (0001339050 for Modulus 10; 800101 5009 087 for the ID). The ID check used where people type their number is stricter than Appendix J; a test runs 4 000 numbers to show that every number the stricter check accepts also passes Appendix J.

Where to check: `docs/sars/it3d-decisions.md`, `src/lib/sars-numbers.ts`, `src/lib/sa-id.ts`, `tests/sars-numbers.test.ts`

5.6 Questions on the IT3(d) report

Questions Q5.1 to Q5.11 are set out in Appendix A, with the reason for each and space for the answer.

6. Personal information (POPIA)

Written mainly for the attorney. Protection claims below are taken from the code and database migrations; the database-backed tests that cover them (`tests/privacy-db.test.ts` , `tests/rls.test.ts` , `tests/erase-donor-db.test.ts`) could not be run again for this briefing (see 9.3). "Row-level security" means the database itself refuses to show a row to the wrong person, whatever the website code does.

6.1 Every category of personal information we hold

Category	Why	Who can see it	How it is protected	Retention and erasure
Donor identity and contact: name or organisation, email, optional phone	Take the gift, send the confirmation, tell the charity who gave	The donor; the charity they gave to (name, contact, amount, message); Givezy administrators (second step)	Row-level security; writes only by the server	Kept for the account and records. On erasure the name, email (replaced by a placeholder), phone are cleared; the gift's amount, date, charity and tax year stay
Address (only when an s18A receipt is asked for)	Required on the receipt and in the SARS file	The donor; the charity (as typed at checkout); on the receipt and in the IT3(d) file	As above	Cleared on erasure, but the issued receipt keeps the address printed on it
SA ID number, income tax number, registration number	s18A receipt and the SARS file	Donor (own download). The charity's dashboards show none of it (the owner sees the last 4 digits on the SARS page) and the owner gets full numbers only inside the SARS files. Administrators see only the encrypted value	AES-256-GCM, key held outside the database; the last 4 digits kept separately; a keyed fingerprint (not the number) tells people apart. No key-rotation procedure exists yet (the stored value only carries a version tag)	Cleared on erasure. The receipt keeps the last 4 digits and any company or trust registration number
Amounts and giving history, optional contribution, dates	Records, receipts, totals	Donor; charity (gift only); administrators	Row-level security; amounts cannot change once processed (database rule)	Kept as tax law requires; the period is not decided
The donor's own label	The donor's private records	Only the donor	Separate table the charity cannot read	Deleted on erasure
Dedication and message	Passed to the charity	Donor, charity	Row-level security	Wiped on erasure; never on the receipt
Notes, follow-ups and tags a charity keeps about donors	The charity's relationship with its donors	That charity's team; administrators	Row-level security; a tag can be used only within its own charity	Deleted on donor erasure. Not in "Download my information" (open point)
Contact lists a charity imports (name, phone, address, note)	The charity's own donor list and receipting	That charity's team	Import is owner-only; never emailed by Givezy	**Not cleared by donor erasure** (open point: charity is the responsible party)
Charity contact people and bank details	Vetting, paying the charity, contact	The charity's team; administrators. Bank account numbers are encrypted and only the last 4 digits show	Encryption as above; private table	While the charity is listed; unused invitations: retention undecided

Category	Why	Who can see it	How it is protected	Retention and erasure
Sign-in email and profile (and "kind of giver", an optional answer)	Sign-in by emailed code	The person; administrators	Sign-in by code only; password sessions are refused; admins also need an authenticator code	The account is deleted on erasure unless it belongs to someone who runs a charity or the platform
Saved card authorisation (monthly or saved card)	Collect monthly gifts	Nobody (server only)	Encrypted token; we hold no card number, only the last 4 digits, brand and expiry	Destroyed on erasure
Payment provider messages (webhooks)	Idempotency and audit	Server only	No client may read the table	Reduced to the reference and event on erasure
Agreements ticked (policy version, time, which donation)	Evidence of consent	Server and the donor's download	Server-only	Account agreements deleted with the account; charity declarations stay with the charity
Audit log	Who did what	Administrators (second step)	Append-only: update and delete are refused by the database. It records counts and references; no full ID numbers	Kept; no deletion period set
Technical: IP address and email in rate-limit records; sign-in cookie	Slow down fraud and guessing	Server only	Cleared by the same code that writes them	About a day. No advertising or tracking cookies and no analytics
On the phone (the app)	Giving goals, an income log, saved charities, cause choices, the sign-in session	The person on that phone	iOS Keychain / Android Keystore; each signed-in person has their own copy; the income log and goals never go to our server	Deleted with the app only in part: Keychain items normally survive deleting an app (open decision)

Where to check: `src/lib/crypto.ts`, `supabase/migrations/20261009000009_privacy_lanes.sql`, `supabase/migrations/20261020000001_review_fixes.sql (erase_donor_data)`, `src/lib/privacy/erase.ts`, `src/lib/rate-limit.ts`, `apps/mobile/src/lib/secure-storage.ts`, `docs/decisions.md (Privacy lanes)`

Where to check: Audit log rule: `supabase/migrations/20261006000001_core_schema.sql (audit_log_append_only)`, `src/lib/audit.ts`

The one thing erasure cannot clear is what has been printed on an issued s18A receipt, because issued receipts are immutable. The receipt keeps the donor's name, address, the last 4 digits of the ID and the registration number of a company or trust, and its PDF is kept in private storage.

6.2 Responsible party and operator

Our proposal: **Givezy is the responsible party** for donor accounts, taking and recording the donation, and issuing receipts. **Each charity is the responsible party** for what it adds or does with its donors (its notes, tags, imported lists, the SARS files it downloads and any emails it sends), and Givezy is its **operator** for those. The draft Privacy Policy does not say this: it says Givezy is "the responsible party for your personal information" without exception. The charity terms say a charity "will use donors' information only to record donations and thank donors, keep it secure under POPIA, and not sell or share it" and "is responsible for any donor information it downloads". An operator agreement does not exist. See Q6.1.

Where to check: `src/app/privacy/page.tsx`, `src/app/terms/page.tsx`, `docs/go-live-checklist.md (POPIA: erasure and imported contacts)`

6.3 Consent and notices at checkout

Before paying, the donor sees these ticks (the first two are required; the stored record is the policy version, the time and the donation):

> "I am 18 or older[, and allowed to give on behalf of this organisation]."
> "I agree to [the Terms and Privacy Policy], and that my details are shared with [charity] so they can record my donation. Givezy keeps any label I give it privately, for my own records."
> "Give anonymously. Your name won't appear on public pages, campaign lists or live totals. [Charity] still sees your details, because it needs them to record your donation and issue your s18A receipt."
> "Don't send me news or appeals from [charity]. You'll still get your confirmation and s18A receipt."

Anyone who signs in must also tick, once for each version of the Terms, "I agree to the Terms and Privacy Policy" and "I am 18 or older". The app plans to merge the two into one tick (undecided).

Where to check: `src/app/c/[slug]/donate/donate-flow.tsx`, `src/app/agree/`, `src/lib/donations/checkout.ts (consents)`

6.4 Direct marketing and thank-you emails

- **Charity news and appeals.** A charity's owner can email its donors through Givezy. Each email carries a one-click unsubscribe (the standard stop headers and a stop link). A donor who ticked "Don't send me news" at checkout, or pressed stop, is left out. At most 4 emails from one charity to one donor in 30 days (the database enforces it) and 5 sends a day per charity. The stop record is a hash of the address.
- **Never emailed:** donors whose gifts were all recorded by the charity (EFT, cash, imports) because they never saw the tick, and contacts a charity imported from a list. The import confirmation says the details are for recording gifts and receipts only.
- **Monthly thank-you.** A charity owner can have Givezy email that month's donors a thank-you (first name only, once a month, a stop link in each). It is owner-only since 02/11/2026.
- Not built or not decided Email sending is not switched on. The Privacy Policy still says "we do not send you marketing", which does not match charities' news and appeals; the line to add is in the checklist.

Where to check: `src/lib/charity/appeals.ts`, `src/lib/charity/appeals-rules.ts (APPEALS_PER_MONTH = 4)`, `src/lib/email/one-click-stop.ts`, `tests/one-click-stop.test.ts`, `tests/appeals.test.ts`

6.5 Cross-border transfers: provider by provider

Provider	Role	Personal information that goes to it	Where
Supabase	Database, sign-in, file storage	Everything in 6.1 (ID and bank numbers encrypted before they reach it)	Frankfurt (eu-central-1). No South African region exists
Vercel	Hosting and the daily job	All traffic passes through; server logs	Frankfurt (fra1)
Email provider (Resend planned)	Receipts, confirmations, sign-in codes, charity emails	Recipient email, message text, receipt PDFs (name, address, last 4 digits)	Region to be confirmed. Not set up
Paystack	Payment provider	Donor email, amount, reference, a description; for a charity: its bank details. Card details are typed on its page and never reach us	Region to be confirmed
Apple and Google	App distribution	Developer accounts only; the app sends them no donor data	Not applicable
Expo	App build and update service	No donor information that we know of	Region to be confirmed
GoDaddy	Domain registration	The founder's registration details	Not applicable

Where to check: `docs/go-live-checklist.md (Hosting: Vercel; Supabase)`, `docs/decisions.md (Open, item 5)`, `vercel.json`, `src/lib/gateway/paystack.ts (createCheckout body)`

6.6 Breach response, data subject requests, information officer, anonymity

- **Breach response.** Not built or not decided No written plan or notification templates exist. What exists: the append-only audit log; a daily email to Givezy listing anything that needs a person (stuck payments, held items, failed

emails, the monthly job not running); an immediate email on a chargeback; rate limits on sign-in, checkout and downloads. Q6.9

- **"Download my information".** Built and tested A signed-in donor can download everything we hold about them (limited to five downloads an hour). Because everyone who gives with one email shares a donor record, the download includes details typed at each checkout with that email, even if someone else typed them; it does not include the notes a charity keeps.
- **Correct, delete, stop using.** Built and tested The donor sends a request from their account; it appears under Admin, Privacy requests; a platform administrator carries out the erasure (donor records and their charity-side notes and personal thank-yous; monthly donations stopped; sign-in account deleted unless they run a charity). A confirmation email is sent to the address read beforehand. Someone with no account can be erased by an administrator by email address.
- **Information officer.** Not built or not decided No one is named: the Privacy Policy shows "[to be confirmed]". Registration with the Information Regulator is on the go-live list.
- **Anonymity.** "Give anonymously" applies to public pages only (see 3.6). The charity always sees the donor's details.

Where to check: `src/app/account/data/export/route.ts`, `src/app/account/data/actions.ts`, `src/app/admin/requests/`, `src/lib/privacy/erase.ts`, `src/lib/ops/daily.ts`, `src/lib/ops/alert.ts`, `tests/erase-donor-db.test.ts`, `tests/erase-donor-flow.test.ts`

6.7 Questions on personal information

Questions Q6.1 to Q6.11 are set out in Appendix A, with the reason for each and space for the answer.

7. Terms, charity agreement and platform conduct

Written mainly for the attorney. The Terms and Privacy Policy exist as draft pages on the test site. Both show a "draft for legal review" notice until a setting is switched, and every blank shows "[to be confirmed]". Nothing has been approved.

Where to check: `src/app/terms/page.tsx`, `src/app/privacy/page.tsx`, `src/config/legal.ts (reviewedByLegal: false)`

7.1 What the draft pages say now (key clauses, word for word)

Page and section	Clause as the reader sees it	Note
Terms, About these terms	"These terms apply to the Givezy website and app, run by [to be confirmed]. By donating, signing in or listing a charity you agree to them and to our Privacy Policy. South African law applies."	No operator named yet.
Terms, Donating	"Your donation goes to the charity you choose. Givezy does not charge a fee on donations."	Matches platform.ts.
Terms, Donating	"You may add a separate contribution to Givezy (minimum R10). It is optional, is not a donation to the charity, and does not appear on any s18A receipt."	Q4.11
Terms, Donating	"Payments are taken by our payment provider on our website, never inside the app."	True today; false once in-app giving is switched on. Must be reworded first.
Terms, Donating	"Refunds: [to be confirmed] (policy to be confirmed)."	No refund policy. Q3.7
Terms, Donating	"You must be 18 or older, and the details you give must be true. If you give for an organisation, you confirm you are allowed to."	
Terms, s18A receipts	"If a charity is approved under section 18A and has signed a receipting mandate with us, we issue one receipt per tax year on its behalf for donations where you asked for one. A receipt covers your donations only, never a contribution to Givezy. Whether a donation is tax-deductible is between you and SARS."	Q4.1 to Q4.3

Page and section	Clause as the reader sees it	Note
Terms, Charities	"A charity listed on Givezy confirms that: the person applying is authorised to act for it, and its information and documents are true; it will use donations for the purposes it describes, and tell us at once if its registration, PBO or s18A status changes; it will use donors' information only to record donations and thank donors, keep it secure under POPIA, and not sell or share it; it is responsible for any donor information it downloads from its dashboard. We may suspend or remove a charity that breaks these terms. [to be confirmed] (full charity agreement to be confirmed)."	Does not yet mention SARS files or emailing donors. Q7.2
Terms, Our responsibility	"Givezy is a platform that connects donors with registered charities. The charity, not Givezy, is responsible for how donations are used. [to be confirmed] (limits of liability to be confirmed)."	Q7.3
Privacy, Who we are	"Givezy is run by [to be confirmed], registration number [to be confirmed], [to be confirmed]. We are the responsible party for your personal information under the Protection of Personal Information Act (POPIA)."	Q6.1
Privacy, Why we use it	"We do not sell your information, and we do not send you marketing."	Conflicts with charities' news and appeals. Q6.3
Privacy, Who we share it with	"Our payment provider: what it needs to take your payment. [to be confirmed] (to be named once chosen)." and "Some of these providers may store information outside South Africa. [to be confirmed] (where, and the safeguards in place, to be confirmed)."	Q6.5. The provider can now be named.
Privacy, Who we share it with	"It does not see your ID or tax number on Givezy, your private labels, or any contribution to Givezy. The one exception is the law: a charity that issues s18A receipts must report each receipt to SARS (its IT3(d) return), with the donor's name, ID or registration number and address. The charity's owner can download that report from Givezy for that purpose only."	Added 03/11/2026, draft. Q6.10
Privacy, How long we keep it	"Donation and receipt records are kept for as long as tax law requires. [to be confirmed] (period to be confirmed)."	Q4.6 and Q6.6
Privacy, How we protect it	"ID numbers, tax numbers and bank account numbers are encrypted. Access is limited to the people who need it, and admins must use an authenticator app. Every charity sees only its own donors."	Checked in section 9.
Privacy, Special personal information	A section saying a donor's private label may reveal sensitive facts, is kept only because the donor gives it, and only the donor can see it.	Q6.11

7.2 How a charity is checked before it is listed

1. **Invitation or application.** A platform administrator can invite a charity by email (a link that works once, for 30 days), or the charity applies on the website. Sign-in is by emailed code, then the Terms agreement and a second step with an authenticator app.
2. **The application** asks for: the organisation's names, an NPO or PBO number (at least one), its registered address, a contact person, and a bank account in the organisation's name (the account number is encrypted). **Documents:** a bank confirmation letter always; a PBO approval letter if it has a PBO number; and, to issue s18A receipts, the SARS s18A approval and the signed receipting mandate.
3. **Four declarations** are ticked on submitting: the person is authorised, the information is true, the terms are accepted, and donor information will be handled under POPIA. They are stored with the person and the charity.
4. **Review by hand** by a platform administrator (second step), promised within 2 working days: the registration, the bank confirmation letter and, for s18A, the approval and mandate. Approval marks the bank details verified. What will go public is shown on the review page.
5. **Bank check with the provider** (information only; it never approves anything). Built, not yet proven It has not been confirmed that it works for a business account without a company registration number.
6. **Connecting to the provider.** An administrator creates the charity's payout account; only then can it take donations. A change to the bank details disconnects the charity and clears "verified".
7. **After approval** an administrator can suspend or reinstate a charity (the contact is emailed and the page is hidden; no donations; monthly gifts not collected; history kept), remove a person's access, and reset a lost second step after calling a number already on file (logged, and the person is emailed). A rename, or a new logo or cover, is allowed but logged and emailed to the team.

8. Not built or not decided **Not built:** sanctions screening, automatic register lookups (NPO, PBO, company), and a second reviewer. Approval is one administrator.

Where to check: `src/lib/charity/checklist.ts`, `src/app/apply/`, `src/app/admin/charities/[id]/actions.ts`, `src/lib/charity/emails.ts`, `docs/decisions.md (Charity sign-up; Platform admin controls after approval)`, `supabase/migrations/20261012000001_bank_edit_clears_verified.sql`

7.3 What the charity agreement must cover

Today a charity ticks four declarations and accepts the Terms. We think a charity agreement must cover:

- **Fee:** none on donations today; whether anything is charged for receipting gifts a charity records itself is undecided.
- **Settlement:** gifts settle straight to the charity's own account; the provider's charge is borne by the charity; timing is the provider's; a bank change reconnects the charity only after checking.
- **Suspension and removal**, and what happens to donors, monthly gifts and data when it happens.
- **Refunds and chargebacks:** who bears them, and the charity's help in answering a dispute before the provider's deadline.
- **False statements and misuse of funds:** what we may do, and any indemnity.
- **The s18A mandate:** authority to issue, void and re-issue; that the statement on the receipt is the charity's; records; term and ending.
- **SARS files:** the charity's duty to keep the files it downloads (which hold donors' full ID numbers) safe and use them only for SARS.
- **Donor information:** the charity as responsible party for its own lists, notes and emails; the rules for emailing donors; no use of imported contacts by Givezy.
- **Public content:** photos and updates it may share, consent for people shown, and Givezy's right to remove.
- **Changes:** telling us at once if its registration, PBO or s18A status changes.

7.4 Moderation of public text

- Charity photos (up to 12), updates (up to 500 characters) and campaigns are published as soon as they are posted. Givezy administrators can remove any. Nothing is edited in place. Who posted is kept for us and never shown publicly. The dashboard asks charities to post only photos they may share and never to show a family who receives help without consent. Built and tested
- A charity's thank-you email goes out as plain text under Givezy's sender; control and direction characters are stripped; links are allowed. Whether a body with a link should wait for platform approval is undecided (phishing risk if a charity account is taken over). Not built or not decided
- Donors' own text (message, dedication name, label) is private to the donor and the charity (3.6) and is length-limited and cleaned of control characters; there is no word filter.

Where to check: `docs/decisions.md (Real photos and updates)`, `src/lib/charity/appeals-rules.ts (clean)`, `src/lib/donations/dedication.ts`, `tests/charity-stories-db.test.ts`

7.5 Draft wording that needs approval

Wording	Where it lives	Who decides
Terms and Privacy Policy, including the entity line, the fee sentence, refund policy, limits of liability and retention	src/app/terms, src/app/privacy	Yosef
The s18A statement on the receipt, and the particulars it prints	src/config/receipts.ts, src/lib/receipts/html.ts	Yosef
The receipting mandate	Not written	Yosef
The monthly authorisation tick, the monthly emails ("could not collect", "has stopped") and card-on-file rules	src/app/c/[slug]/donate/donate-flow.tsx, src/lib/donations/monthly-email.ts	Yosef (emails also Yehuda)
Direct marketing: the checkout line, the stop-link wording, a Privacy line that charities may send news and appeals, and whether recorded or imported donors may be emailed	donate-flow.tsx, src/lib/charity/appeals-rules.ts	Yosef
The monthly thank-you emails: covered by the notice, or opt-in?	src/lib/charity/thank-you.ts	Yosef

Wording	Where it lives	Who decides
The privacy wording about SARS files (Privacy Policy and the home page card "Your ID stays off the dashboard") and a charity-terms line	src/app/privacy/page.tsx, src/app/page.tsx	Yosef
What an erasure keeps, and for how long	src/lib/privacy/erase.ts (ERASE_KEPT_TEXT)	Yosef
The app's single "18 or older and agree" tick; the Terms sentence on payments inside the app; the saved-card consent line ("Save my card for next time")	apps/mobile/src, src/app/terms/page.tsx	Yosef
A line for "kind of giver" (an optional answer kept on the account)	src/app/privacy/page.tsx	Yosef
Retention of unused charity invitations (suggested: delete 90 days after they expire)	Not written	Yosef

7.6 Questions on terms, the charity agreement and conduct

Questions Q7.1 to Q7.5 are set out in Appendix A, with the reason for each and space for the answer.

8. Givezy's own tax and corporate position

For the accountant and the attorney together.

8.1 The company that does not exist yet

- No company is registered. The legal settings that feed the Terms, Privacy Policy and footer are all empty: company name, registration number, address, Information Officer (name and email), privacy email and support email. Nothing is guessed; each shows "[to be confirmed]".
- The intended order is: a first proof of concept in the founder's personal name (3.5), then company registration, then the company's own email and bank account. The domain givezy.co.za is registered at GoDaddy (16/10/2026). The app's developer accounts are set up under the founder's individual Apple account, with a move to a company account planned.

Where to check: `src/config/legal.ts`, `docs/go-live-checklist.md (Givezy's registered details; App identity)`

8.2 What Givezy will earn

Source	Position in the code and decisions
Donor contributions	Optional; unticked by default; any amount from R10 (a flat amount per payment, kept separate from the gift; stored as `contribution_cents`). Not a donation to the charity; never on a receipt; hidden from the charity. Monthly donors can include a contribution in the monthly total.
A fee on donations	None. **The settings define no platform fee, percentage or flat, and no processing fee** (decision of 08/10/2026). The only fee-like value is the provider's charge, which the charity bears, and for which the rates are empty.
A charge for receipting gifts a charity records itself (EFT, cash, imports)	None today; undecided.
Anything else	Nothing decided. Cause of the week and similar features carry no payment.

Where to check: `src/config/platform.ts`, `src/lib/fees.ts`, `docs/decisions.md (Donation model and app hand-off)`, `docs/go-live-checklist.md (Recorded gifts and fees)`

8.3 VAT

- The VAT setting is `enabled: false` with `ratePercent: "15"`, with the comment "Off until the company is VAT-registered". We state no registration threshold.
- Every donation row carries a VAT-on-fee amount (`fee_vat_cents`) and a platform fee (`platform_fee_cents`). The code writes R0 to both for every donation. Contributions have no VAT line today.
- Open decision: once VAT-registered, whether the contribution is shown inclusive or exclusive of VAT (decisions file, open item 2, phrased for the fee).

- If the provider's rates are later entered as *excluding* VAT, the "cover the card charge" calculation adds 15% on top of them (from the VAT setting); if they include VAT, it adds nothing. The rates are empty, so this is not in use.

Where to check: `src/config/platform.ts (vat)`, `src/lib/donations/card-charge.ts`, `supabase/migrations/20261006000001_core_schema.sql (donations)`

8.4 Income tax, the provider's fees, and the expense side

How Givezy's income is taxed, in the founder's hands now and in a company later, is for you (Q8.2); the code has nothing on it. The provider's charge is carried by the charity under the current setting; if the setting is changed so that Givezy bears it, the code supports that, but no rate exists to show what it would cost.

Costs named in our documents, with no figure being fixed (to be re-checked on the day, and each paid plan needs the founder's approval):

Cost	What our documents say
Website hosting (Vercel)	Free plan is for non-commercial use only. Pro is "about $20 a month" and is needed before the first real donation.
Database (Supabase)	Free plan pauses after a week without visitors and has no daily backups. Pro is "from about $25 a month" and is needed before going live.
Payment provider	Rates empty until supplied. A bank-account check costs R3 per successful request, per the provider's documents.
Email (Resend)	Free allowance; price to be checked in Rand before signing up.
Apple and Google developer fees	Apple annual, Google one-off; the current price is to be checked on the day. No figure in the repository.
Domain	givezy.co.za at GoDaddy; no figure in the repository.

Where to check: `docs/go-live-checklist.md (Hosting: Vercel; Supabase Pro; Email sending; App identity)`, `docs/launch-plan.md`

8.5 Questions on Givezy's own position

Questions Q8.1 to Q8.6 are set out in Appendix A, with the reason for each and space for the answer.

9. Controls and evidence

9.1 What we promise, how it is enforced, how to verify

We promise	How it is enforced	How to verify
Nothing is marked paid without the provider's own confirmation of the exact amount	The server asks the provider for the payment; only success, in ZAR, for exactly the total expected marks a gift paid. A different amount is held and logged.	src/lib/donations/confirm.ts; tests/payment-persistence.test.ts, tests/donation-confirmation.test.ts
A payment message is processed once	Each message is stored under a unique (provider, event id) key; a repeat is acknowledged and ignored unless the first never finished. A gift moves pending to paid only once (conditional update), and a database rule limits status changes.	src/app/api/webhooks/[gateway]/route.ts; supabase/migrations/20261009000016_review_fixes.sql (guard_donation_status); tests/webhook-route.test.ts, tests/webhook-retry.test.ts
The provider's messages are genuine	The signature on each message is checked (HMAC-SHA512 of the body). Marked in the code as to be verified against the provider.	src/lib/gateway/paystack.ts (parseWebhook); tests/paystack-gateway.test.ts

We promise	How it is enforced	How to verify
Amounts are whole cents	Money columns are integers (bigint); percentages are whole parts per million; no floating point in money code.	src/lib/money.ts, src/lib/fees.ts; tests/money.test.ts, tests/fees.test.ts
Amounts of a processed gift cannot change	A database rule refuses changes to amounts, charity and donor after the gift leaves pending.	supabase/migrations/20261009000016_review_fixes.sql
A charity sees only its own donors	Row-level security: a charity's team can read donors who gave to that charity, in limited columns, and nothing of other charities. Fees, contributions, provider data and any ID digits are outside that lane.	supabase/migrations/20261009000009_privacy_lanes.sql; tests/privacy-db.test.ts, tests/rls.test.ts
Owner-only gates: SARS files, imported lists, thank-you emails	The server checks the person is the charity's owner (and has done the second step) before it serves or accepts these; ten downloads in ten minutes at most. A platform administrator counts as owner (open decision).	src/lib/receipts/it3d-request.ts; src/lib/charity/team.ts; tests/thank-donors-owner.test.ts, tests/charity-contacts-actions.test.ts
Second step for charity and platform admins	Admin pages require an authenticator-app code; the database policies for admins check it. A live check that an emailed code alone cannot add a second authenticator is still to do.	src/lib/mfa.ts; supabase/migrations/20261006000002_row_level_security.sql; docs/go-live-checklist.md
ID, tax and bank numbers are encrypted	AES-256-GCM, key in an environment variable and not in the database; only masked digits are displayed.	src/lib/crypto.ts; tests/crypto.test.ts
Receipts cannot be edited, only voided with a reason	A database trigger refuses any change except attaching the PDF and withdrawing with a reason; deletes are refused.	supabase/migrations/20261006000001_core_schema.sql, 20261009000016_review_fixes.sql; tests/receipts-db.test.ts
One receipt per donor identity, per charity, per year	A unique index in the database.	supabase/migrations/20261009000008_receipt_identity.sql
The audit log is append-only and holds no ID numbers	A trigger refuses update and delete; the code writes references, counts and reasons.	supabase/migrations/20261006000001_core_schema.sql; src/lib/audit.ts
Erasure clears what identifies a person	One database function in a single step, then the charity-side notes, personal thank-yous and the sign-in account.	src/lib/privacy/erase.ts; supabase/migrations/20261020000001_review_fixes.sql; tests/erase-donor-db.test.ts
Rate limits slow guessing and card testing	Counts per email and per address: checkout 5 per email and 30 per address in 10 minutes; sign-in links 5 an hour per email; ten code tries an hour; data download 5 an hour; charity downloads 10 in 10 minutes; appeals 5 sends a day.	src/lib/rate-limit.ts; src/lib/donations/checkout.ts; src/app/login/actions.ts

We promise	How it is enforced	How to verify
The test payment gateway never runs on the live site	The code refuses it wherever the hosting environment says production.	src/lib/gateway/index.ts; tests/test-gateway.test.ts
Card details never reach us	The donor types them on the provider's page; the app has no card fields.	src/lib/gateway/paystack.ts (createCheckout)

9.2 Things the controls do not cover

- The provider's real behaviour: nothing but one test donation has run against it. Field names for refunds, disputes and settlements are unconfirmed.
- Supabase's own sign-in limits and email life must be set in the live project; the website's limits do not cover direct calls from the app.
- No key-rotation procedure for the encryption key; no written breach plan; no backup and restore rehearsal.

Where to check: `docs/go-live-checklist.md (Supabase's own sign-in limits; Block password sign-ups; Back up the real database)`

9.3 Testing evidence

> **Run on 04/11/2026** with `npm run test:no-db` (every test that does not need the database): **111 test files, 110 passed; 964 tests passed, 3 skipped.** The one failing file (tests/featured.test.ts) fails only because it needs the database.
>
> **The full run (`npm test`) could not be done here.** It needs the local test database, which is not available in the environment where this briefing was written: it stops with "connect ECONNREFUSED 127.0.0.1:54322 … Nothing was tested". The repository holds 136 test files, of which 26 need the database (row-level security, receipts, erasure, privacy, monthly giving and others); a count of test declarations in those files gives roughly 205 cases. They were not re-run for this briefing, so the real full-suite number today is not available to us. An earlier project document records 908 tests on 22/10/2026; that figure is older and is not re-verified.

Area	Test files
Money and payments	fees, money, card-charge, payment-persistence, donation-confirmation, webhook-route, webhook-retry, paystack-gateway, donations-db, monthly-job, monthly-schedule, monthly-giving-db, donation-reverse, deposits, payouts-db, admin-payments-page
s18A receipts	receipts, receipts-db, receipt-runs, receipt-runs-db, receipt-words, receipt-route, year-list, tax-pack
IT3(d) and SARS numbers	it3d (45 cases), it3d-store, it3d-db, sars-numbers (16 cases), sa-id
Privacy and security	privacy-db, rls, erase-donor-db, erase-donor-flow, email-erased, return-privacy, crypto, one-click-stop, appeals, appeals-db

Where to check: `tests/ (all files named above)`, `package.json (scripts: test, test:no-db)`, `docs/legal-briefing/samples/test-run.json`

10. Open items we already know

Everything not built or not decided, from the project's go-live checklist and decisions file, grouped by who must act. One line each. The questions in the earlier sections are in Appendix A and are not all repeated here.

Attorney (Yosef)

- Approve Terms and Privacy Policy; entity line, fee sentence, trademark question.
- Approve the s18A statement and particulars; full ID printing; who signs; donor contact and charity logo.
- Write the receipting mandate.

Yehuda

- Register the company; fill in the legal settings (name, number, address, Information Officer, privacy and support emails).
- Supply the provider's rates (percent, fixed, VAT included or not); decide payment options beyond cards.

- Monthly authorisation, card-on-file rules and monthly emails.
- The app's single tick; the Terms sentence on in-app payments; saved-card consent line.
- Direct marketing wording; recorded and imported donors; monthly thank-yous.
- What an erasure keeps, and for how long; imported contacts; notes in an access request; shared emails in a download.
- SARS files wording; charity terms line on keeping them safe.
- Refund policy; chargeback and s18A loss rule; charity name changes.
- Information Officer and Regulator registration; breach plan.
- Cross-border safeguards; operator agreement with charities.
- Donors with no SA ID (non-residents).
- Whether a platform administrator should count as owner of every charity.
- Retention of unused charity invitations.

Accountant

- Nature of Person and identification numbers for charities as SARS entities.
- Interim and nil IT3(d) declarations; the 31 October and 31 May dates.
- Enrolment for third-party data; SARS test environment.
- Old tax-number-only receipts; listed companies and close corporations; goods (IN SPECIE).
- Corrections and deletions; two files for one year.
- How a part-refunded gift counts on a receipt.
- Reconciling deposits to receipts; bookkeeping for gift, contribution and fee.
- Givezy's VAT and income tax; entity form.
- Each charity's first live IT3(d) submission checked by its own accountant.

- Approve the R3 per bank check cost; finish the provider's test steps (declined card, monthly, refund, dispute, deposits).
- Set up email sending (account, domain records, test sends); set the admin alert email.
- Paid plans for hosting and database before the first real donation; backups.
- Remove test settings, set live keys and the webhook, run every database change on the live database in order after a backup.
- Make sure someone reviews new applications within 2 working days.
- Decide: sign-in lockout rule; link policy in thank-yous; monthly amount when rates change; a monthly donation paused for a dispute; a dispute the charity wins; partial refunds; payment method stored on the gift; saved cards; clean-up of undo files.
- Fix the receipt run for the hosting time limit.
- Decide what the phone keeps after the app is deleted.
- Update the go-live documents to the sole-proprietor proof of concept.

SARS

- Confirm IT3(d) due dates and the nil-declaration route.
- Confirm field order, body order, line ending, file name and hash by test file.
- A test Source Identifier.

The payment provider

- Rate sheet; the lifetime cap and what it counts.
- Settlement schedule and the settlement and refund field names.
- Whether a bank check works for a business account.
- Declined card, monthly and refund behaviour in test mode.
- Which payment channels are offered.

Apple and Google

- Written confirmation that donations inside the app are allowed (and card-on-file); then app privacy answers.
- Sign-in with Apple and Google set up before social sign-in is switched on.

Where to check: `docs/go-live-checklist.md`, `docs/decisions.md`, `docs/launch-plan.md`

Appendix A. All questions, with room for answers

55 questions. They are grouped by who answers. Questions marked Both appear in the last group only; please answer them together.

A.1 For the attorney

Questions marked Attorney.

Q3.1 Does Givezy need any licence or registration to run payments the way it does (it starts the payment, decides the split between charity and Givezy, takes a flat contribution, and never holds a charity's gift), or does the payment provider's own licence cover this?
Why we ask: We have found no position on this, and the whole structure depends on it.

Answer:

Q3.2 Is Givezy an accountable institution, or otherwise bound by FICA, because it checks charities and arranges payments to them? If so, what must we do and keep?
Why we ask: We check documents by hand today and keep no FICA-style records beyond the documents themselves.

Answer:

Q3.3 Are we expected to screen charities, their office bearers or donors against sanctions lists? We do none today.
Why we ask: We do no screening at all, and we want to know if that is acceptable for a pilot.

Answer:

Q3.4 Does hosting fundraising pages for charities, and taking a voluntary contribution, bring any fundraising, non-profit or other registration or disclosure duty on Givezy, and does the answer change once Givezy is a company?
Why we ask: We are not a charity, but we sit between donors and charities.

Answer:

Q3.5 Proof-of-concept structure: is it acceptable for the founder, as a sole proprietor, to be the payment provider's merchant before a company exists? What personal liability follows (chargebacks, refunds, claims by charities or donors, POPIA), what terms must donors and charities accept, and how do we move everything to a company later?
Why we ask: This is the plan for the first live donations, so the risks should be written down before we start.

Answer:

Q3.6 The provider states a lifetime collection cap of ZAR 1,000,000 for South African sole proprietorships. Does it count the full payments that are split to charities, or only Givezy's own share? What happens when it is reached? (We will also ask the provider.)
Why we ask: If the whole gift counts, the proof of concept could end quickly.

Answer:

Q3.7 Do once-off and monthly donations carry any cooling-off right or other consumer-law rule (Consumer Protection Act, or the rules on electronic transactions)? What refund policy must we publish? The draft Terms say the refund policy is to be confirmed.
Why we ask: Donors currently have no stated right to a refund.

Answer:

Q3.8 Is our single monthly tick ("I authorise Givezy to collect R.. from my card every month until I cancel") enough authority to keep a card on file and charge it monthly? What must the confirmation email, the reminder and the cancellation route say, and do we owe notice before each charge or when the amount changes?
Why we ask: Monthly giving is built but not yet proven with the provider.

Answer:

Q3.10 Charities publish photos, updates and campaign text on public pages straight away, and Givezy can remove any of it. Who is liable for unlawful or harmful public text, and what takedown steps and indemnity do we need? (Donors' own messages and dedications are not public: see 3.6.)
Why we ask: There is no pre-approval of charity updates, only removal afterwards.

Answer:

Q3.11 Which disclosures about Givezy must the website show under the electronic communications and transactions laws (we assume the Electronic Communications and Transactions Act: please say if another Act applies)?
Why we ask: The footer and Terms still show "[to be confirmed]" for the company details.

Answer:

Q4.1 Can a platform issue section 18A receipts for a charity under a signed mandate, with the charity staying responsible? The certificate's statement says the charity issues the receipt; its footer says it was "Issued through Givezy on behalf of" the charity. Is that combination right?
Why we ask: This is the core of the product.

Answer:

Q4.2 What must the receipting mandate contain (authority to issue in the charity's name, void and re-issue, records, data, term, termination, indemnity, who signs)? We have no mandate template yet: charities are sent one to sign and we store the signed copy and its signing date.
Why we ask: No mandate wording exists in the code or documents, so one must be drafted.

Answer:

Q4.4 Please confirm the exact statement wording and each particular in the table in 4.9 (the SARS notice of 1 March 2023, GN 3631), including whether a signature or signer's name is needed, the charity's trading name, and the donor's contact details.
Why we ask: Issued receipts cannot be edited, so a missing item later means void and re-issue.

Answer:

Q6.1 Responsible party or operator: we propose that Givezy is the responsible party for accounts, donation processing and receipts, and that each charity is the responsible party for its own notes, imported contact lists and the SARS files it downloads, with Givezy as its operator. The draft Privacy Policy today says Givezy is the responsible party for everything. Which is right, and what agreement do we need?
Why we ask: Erasure and the donor's right of access both depend on the answer.

Answer:

Q6.2 Is the checkout notice and consent (age, agreement to the Terms and Privacy Policy, sharing details with the charity) enough? The app plans to merge these into one tick. Is the optional private label and the dedication handled correctly?
Why we ask: The wording is a draft awaiting approval.

Answer:

Q6.3 Charities may email their donors news and appeals through Givezy (opt-out tick at checkout, a one-click stop link, at most 4 a month per donor per charity; donors whose gifts the charity recorded itself and imported contacts are never emailed). Is opt-out enough for existing donors, and who is the responsible party for these emails? The Privacy Policy still says "we do not send you marketing".
Why we ask: The policy must match what the product does.

Answer:

Q6.4 Charity owners can have Givezy email a monthly thank-you to that month's donors (first name only, a stop link in each). Is that covered by the notice, or must donors opt in?
Why we ask: It is built but email sending is not switched on.

Answer:

Q6.5 What do we need in place for the providers that hold data outside South Africa (database and hosting in Frankfurt; email provider region and the payment provider's hosting to be confirmed)?
Why we ask: We have no South African region for the database.

Answer:

Q6.6 What may we keep after an erasure request, and for how long? Today we keep each donation's amount, date, charity and tax year, issued s18A receipts (which keep the donor's name, address and last 4 digits) and an audit log without ID numbers. A charity's imported contact rows are not cleared. Is that defensible?
Why we ask: The Privacy Policy says the retention period is "to be confirmed".

Answer:

Q6.7 "Download my information" includes names, phones and addresses typed at checkout with the donor's email, even if someone else typed them, and leaves out the notes a charity keeps about the donor. Is this acceptable?
Why we ask: Several people can give using one email address.

Answer:

Q6.8 Information officer: who should it be before there is a company, and what must be registered with the Information Regulator before the first live donation?
Why we ask: The Privacy Policy shows "[to be confirmed]" for the officer.

Answer:

Q6.9 What breach response and notification process do we need (to the Information Regulator and to donors)? We have an audit log and a daily alert email, but no written plan.
Why we ask: Nothing is written down.

Answer:

Q6.10 Donors' full ID numbers are kept encrypted and downloaded by a charity's owner for the SARS file. What must the charity terms say about keeping those files safe and using them only for SARS, and is the draft Privacy Policy wording about this (added 03/11/2026) enough?
Why we ask: Draft wording was added on 03/11/2026 and is not approved.

Answer:

Q6.11 A dedication names a third person (for example someone being remembered), and a donor's own label could reveal sensitive facts about the donor. Do we need anything more than the current notice and the donor's consent?
Why we ask: Both are free text and are wiped on erasure.

Answer:

Q7.1 Please approve or amend the draft wording listed in 7.5 (Terms, Privacy Policy, receipt statement, monthly authorisation, checkout ticks, emails).
Why we ask: Nothing goes live until this is done.

Answer:

Q7.2 What must the charity agreement cover, and should it be a signed document or a click-through? The Terms say "full charity agreement to be confirmed". Items we think it needs are in 7.3.
Why we ask: Charities currently tick four declarations when they submit.

Answer:

Q7.3 Please advise on the limits of liability wording and on who the contracting party is before a company exists. The Terms say Givezy "is a platform that connects donors with registered charities".
Why we ask: The Terms leave the limits of liability as "to be confirmed".

Answer:

Q7.4 Is hand checking of the documents we ask for enough for charity vetting, or should we also check registers (NPO, PBO, company) ourselves? What do we keep as proof of checking?
Why we ask: Approval is by one platform administrator today.

Answer:

Q7.5 A Givezy platform administrator counts as owner of every charity, so can download SARS files and import contact lists for any charity. Is that acceptable, or should it need a real owner on the charity's team?
Why we ask: Open decision from the review of 02/11/2026.

Answer:

A.2 For the accountant

Questions marked Accountant.

Q4.10 "Nature of donation" prints "Card (online)" for every online gift and is frozen in the receipt. SARS's own field is CASH or IN SPECIE. Should the receipt show the payment method at all, and what should it say for gifts recorded by hand?
Why we ask: It would be wrong if we add instant EFT or debit orders later.

Answer:

Q5.1 Which SARS Nature of Person should a non-profit company, a trust and an association not for gain use as the reporting entity, and which identification number should each use as the submitting entity? The SARS document does not map them.
Why we ask: We offer five choices; for some, the file cannot be built until we know the number.

Answer:

Q5.2 What must a charity, or its accountant on its behalf, do to be enrolled and activated for third-party data submission and to obtain a Source Identifier? Can the accountant submit for several charities?
Why we ask: Givezy is not a submitting entity: each charity submits its own file.

Answer:

Q5.3 Does SARS expect the interim IT3(d) (1 March to 31 August, due 31 October) from a charity that issues receipts once a year after the year ends? If a nil declaration is needed, how is it made? Or should charities receipt twice a year?
Why we ask: Our receipts come after the year ends, so the interim file would be empty.

Answer:

Q5.4 Please confirm the due dates (31 October and 31 May) and the 2026/27 dates. We know them only from secondary sources, not SARS's own page.
Why we ask: We do not state a date to charities as certain.

Answer:

Q5.5 Can the first file be tested in SARS's test environment, and who arranges that? It settles field order, body order, line endings and the file name (table in 5.5).
Why we ask: Nobody has sent a file to SARS yet.

Answer:

Q5.6 How should a covered card charge be reported, if at all? We report the gift only.
Why we ask: Same point as Q4.9, seen from the SARS side.

Answer:

Q5.7 Does the deposit report (each payout with its gifts, the provider's fee and the amount that reached the bank) let a charity reconcile payouts to receipts? Where will timing differences (a gift paid in February, paid out in March) cause trouble?
Why we ask: Receipts follow the paid date in Johannesburg time, not the bank date.

Answer:

Q5.8 How should the charity's books record the gift, Givezy's contribution (which the charity never receives) and the provider's fee deducted from the payout?
Why we ask: The dashboard shows the gift and the fee; the contribution is hidden from the charity on purpose.

Answer:

Q5.9 Old receipts that carry only an income tax number, and monthly donors who started before 03/11/2026 with only a tax number, cannot go in the file. Should they be reported by hand on eFiling or left out?
Why we ask: They show as blocking problems on the SARS page.

Answer:

Q5.10 Company donors are reported as unlisted companies, and a recorded gift of method "Other" is reported as CASH with a note. Are these assumptions acceptable, and what about listed companies and close corporations?
Why we ask: We do not ask the donor which kind of company it is.

Answer:

Q5.11 Corrections (Record Status C) and deletions (D) are not built, and a second file for the same year may be answered as a duplicate. How should a charity correct a filed record?
Why we ask: Today a correction is made by hand on eFiling.

Answer:

Q8.1 VAT: whether and when must Givezy register, and should contributions be shown inclusive or exclusive of VAT? The system has a VAT setting (off, 15%) and stores a VAT amount on each donation (always R0 today).
Why we ask: We do not state any registration threshold ourselves.

Answer:

Q8.2 How is Givezy's income taxed: contributions in the founder's hands during the proof of concept, and in a company later? Is a voluntary contribution revenue for a service, or something else?
Why we ask: It sets how we describe the contribution to donors.

Answer:

Q8.4 The provider's charge is borne by the charity. If that ever changes to Givezy bearing it, or if Givezy later charges a fee, how should each be treated for tax and VAT?
Why we ask: Neither is the case today and no rate exists in the code.

Answer:

Q8.5 Contributions pass through the founder's provider account during the proof of concept and charities' gifts do not. Is there any tax or VAT consequence for funds in transit, or for the founder personally?
Why we ask: Charity gifts settle straight to the charity's own account.

Answer:

Q8.6 How should our running costs (hosting, database, email, app store fees, domain; some in US dollars) be recorded? The repo notes only approximate figures.
Why we ask: No figures are fixed.

Answer:

A.3 For both of you

Questions marked Both.

Q3.9 Refunds and chargebacks: who bears them as between the donor, the charity, Givezy and the provider (including chargeback fees, the contribution part and partial refunds), and what must the charity agreement say?
Why we ask: The system never moves money by itself on a dispute, but someone must bear the loss.

Answer:

Q4.3 Is one annual receipt per donor per charity, issued after the tax year ends, acceptable, rather than one receipt per donation? Does SARS or the Act require anything earlier for donors?
Why we ask: It keeps the donor's paperwork to one document, but donors cannot claim before March.

Answer:

Q4.5 The receipt prints only the last 4 digits of the donor's ID and tax numbers (company and trust registration numbers print in full). Must the full numbers print? If yes, we must keep them in the receipt record, which is a POPIA decision too.
Why we ask: SARS gets the full ID through the IT3(d) file; the receipt itself shows a masked number.

Answer:

Q4.6 How long must receipts, donation records and signed mandates be kept, and by whom (Givezy as issuer, or the charity)? What must survive a donor's erasure request?
Why we ask: The Privacy Policy still says the period is "to be confirmed".

Answer:

Q4.7 Correcting a receipt: we withdraw (void) and re-issue, and a full refund or chargeback withdraws the receipt automatically. Is that right? What if the donor has already claimed it, and how should a partial refund count (today the receipt keeps the full amount)?
Why we ask: A withdrawn receipt currently sends the donor no notice.

Answer:

Q4.8 Individuals must give an SA ID number to get a receipt, so passport holders and non-residents cannot get one. Companies give a registration number and trusts a trust number. Is this acceptable, and what should we do for foreign donors?
Why we ask: SARS's IT3(d) file has no way to report a donor without an ID or registration number.

Answer:

Q4.9 If a donor ticks "cover the card charge" so the charity receives the whole gift, does the extra form part of the deductible donation? We built the receipt to show the gift only, never the extra. (The box is hidden until the provider's rates are known.)
Why we ask: Whether the receipt amount equals what the charity received depends on this.

Answer:

Q4.11 Donors' optional contributions to Givezy are kept off the receipt and described in the Terms as not a donation to the charity. Is that wording right, and what, if anything, must we tell donors about their tax treatment?
Why we ask: Donors might assume the contribution is deductible.

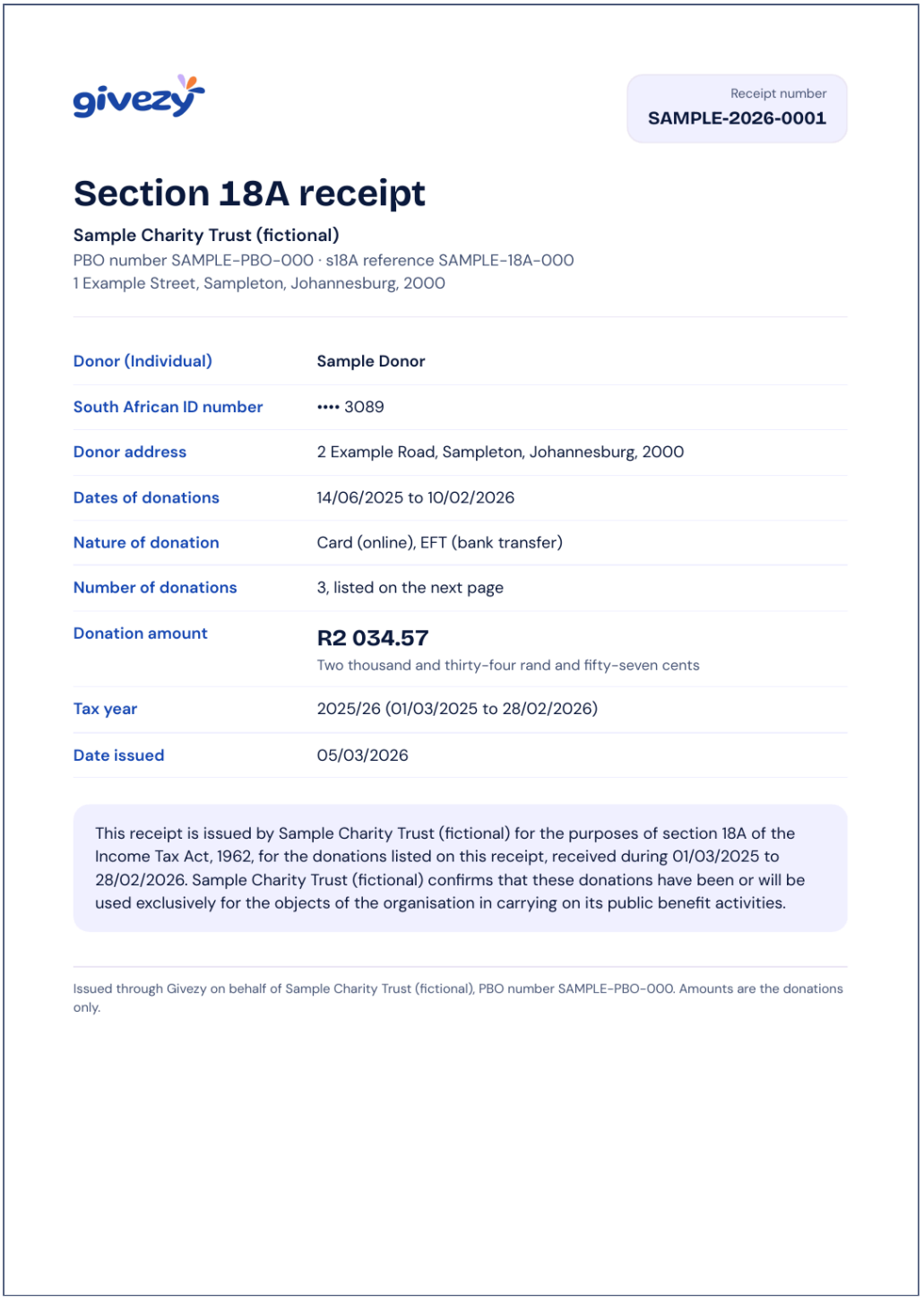
Answer:

Q8.3 Which entity should Givezy become, and when? Is it a for-profit company, and what must change (merchant account, contracts, privacy details, receipts' footer) when it moves from the founder to the company?
Why we ask: We plan to register only after a first proof of concept.

Answer:

Appendix B. Sample section 18A receipt

Made by calling the real receipt builder (`src/lib/receipts/html.ts`) with fictional data: a donor called "Sample Donor", a fictional charity, a made-up ID number that passes the check digit (only its last 4 digits print), and a fake PBO number. The receipt number, dates and amounts are invented. It is shown here as it would print, without the DRAFT mark that real receipts carry until the wording is confirmed. Generated by `docs/legal-briefing/make-samples.ts` .



givezy

Receipt number
SAMPLE-2026-0001

Section 18A receipt

Sample Charity Trust (fictional)
PBO number SAMPLE-PBO-000 · s18A reference SAMPLE-18A-000
1 Example Street, Sampleton, Johannesburg, 2000

Donor (Individual)	Sample Donor
South African ID number	•••• 3089
Donor address	2 Example Road, Sampleton, Johannesburg, 2000
Dates of donations	14/06/2025 to 10/02/2026
Nature of donation	Card (online), EFT (bank transfer)
Number of donations	3, listed on the next page
Donation amount	**R2 034.57** Two thousand and thirty-four rand and fifty-seven cents
Tax year	2025/26 (01/03/2025 to 28/02/2026)
Date issued	05/03/2026

This receipt is issued by Sample Charity Trust (fictional) for the purposes of section 18A of the Income Tax Act, 1962, for the donations listed on this receipt, received during 01/03/2025 to 28/02/2026. Sample Charity Trust (fictional) confirms that these donations have been or will be used exclusively for the objects of the organisation in carrying on its public benefit activities.

Issued through Givezy on behalf of Sample Charity Trust (fictional), PBO number SAMPLE-PBO-000. Amounts are the donations only.

SAMPLE: not a real receipt (page 1 of 2)

givezy

Receipt number
SAMPLE-2026-0001

Donation summary

Every donation on section 18A receipt SAMPLE-2026-0001.

Donor Sample Donor
Charity Sample Charity Trust (fictional)
Tax year 2025/26 (01/03/2025 to 28/02/2026)

Reference	Date received	Nature of donation	Amount
GZ-11111111	14/06/2025	Card (online)	R500
GZ-22222222	20/11/2025	Card (online)	R1 234.57
GZ-33333333	10/02/2026	EFT (bank transfer)	R300
Total (3 donations)			**R2 034.57**

Issued through Givezy on behalf of Sample Charity Trust (fictional), PBO number SAMPLE-PBO-000. Amounts are the donations only.

SAMPLE: not a real receipt (page 2 of 2)

Appendix C. Sample IT3(d) file

Made by the real builder (`buildIt3d` in `src/lib/receipts/it3d.ts`) from fictional data: one fictional charity, two donors, three donations, tax year 2026, marked as a test file. Fields are separated by the pipe character. Long lines wrap here; in the real file each record is one line ending in a carriage return and line feed. The 144-character Source Identifier is a placeholder ("SAMPLE-SOURCE-IDENTIFIER" followed by X). The two ID numbers are made up. The charity's tax reference 0001339050 is the example SARS itself uses for its check-digit rule. The builder reported **no problems**: 2 receipts, 2 donors, 3 donations, total R2 034.57.

File name: `I3D_1_0001339050_00000000-0000-4000-8000-000000000000_20260510T093000.psv`

```
H|GH|2026-05-10T09:30:00|1|00000000-0000-4000-8000-000000000000||T|I3D|HTTPS|SAMPLE-SOURCE-IDENTIFIERXXX
```

Term	Meaning
NPO / NPC	Non-profit organisation / non-profit company: forms in which many South African charities are registered.
Association not for gain	A kind of organisation SARS lists as its own category of entity.
IT3(d)	The return a section 18A organisation sends SARS listing the receipts it issued, donor by donor.
BRS	SARS's Business Requirement Specification: the technical document that defines the IT3(d) file. We followed version 4.0.0D-10 of 07/10/2022.
eFiling	SARS's online filing service. Up to 50 IT3(d) certificates can be typed into a form there; larger submissions use a data file.
Modulus 10	A check-digit rule SARS uses to test tax reference numbers.
Submitting entity / reporting entity	The party that sends the file to SARS / the s18A organisation the file is about. In our files both are the charity.
Source Identifier	A 144-character code SARS issues to an enrolled submitter for data-file submission.
Nil declaration	A declaration that no s18A receipts were issued in a period.
Mandate	The signed document in which a charity authorises Givezy to issue s18A receipts in its name.
POPIA	The Protection of Personal Information Act, 2013.
Responsible party / operator	Under POPIA, the party that decides why and how personal information is used / a party that processes it for the responsible party.
Information Officer	The person in an organisation who is answerable under POPIA and must be registered with the Information Regulator.
FICA	The Financial Intelligence Centre Act, 2001: duties on accountable institutions to know their customers and report suspicious transactions.
Split payment	A single card payment that the payment provider divides between two accounts when it settles.
Subaccount	The provider's name for a charity's own payout account within Givezy's merchant account.
Settlement / deposit	A payout from the payment provider into a bank account.
Chargeback	A donor disputes a card payment with their bank and the money is taken back, pending the provider's and the merchant's answer.
Row-level security	A database feature that stops a user reading rows they should not, enforced by the database whatever the website code does.
Second step	A one-time code from an authenticator app, required on top of the emailed sign-in code for charity and platform administrators.
Webhook	A message the payment provider sends to our server to say a payment succeeded, failed, was refunded or was disputed.
Tax year	1 March to the end of February, named here by the year it ends (2026/27 is 01/03/2026 to 28/02/2027; stored as 2027).

Appendix E. References

SARS and legal documents

- SARS External BRS "IT3 Data Submission", version 4.0.0D-10, 07/10/2022, 272 pages. Copy of its IT3(d) rules: `docs/sars/it3d-spec.md`.
- SARS eFiling guide GEN-ENR-01-G03, Revision 6, effective 07/04/2026, 41 pages. Cited in the same file as "Guide p.".
- SARS notice GN 3631 (section 18A receipt particulars, effective 1 March 2023) and section 18A(2) of the Income Tax Act, 1962. We could not open these from the build environment; the list we used is the one in `docs/go-live-checklist.md`.
- Provider documents quoted in the checklist: the payment provider's API specification (09/06/2026) and its pages on split payments and account validation. Not checked again for this briefing.
- Older draft: `docs/legal-questions-for-yosef.pdf` (08/10/2026), used only to see which topics Yosef already knows about.

Files in the repository

Topic	Files
Settings	src/config/platform.ts, src/config/receipts.ts, src/config/legal.ts
Money	src/lib/fees.ts, src/lib/money.ts, src/lib/donations/ (checkout.ts, confirm.ts, reverse.ts, card-charge.ts, monthly-job.ts, schedule.ts, recurring.ts), src/lib/gateway/paystack.ts, src/app/api/webhooks/[gateway]/route.ts
Receipts	src/lib/receipts/ (html.ts, details.ts, plan.ts, issue.ts, runs.ts, store.ts, pdf.ts, words.ts), supabase/migrations/20261006000001, 20261009000003, 20261009000008, 20261009000016, 20261015000005
IT3(d)	src/lib/receipts/it3d.ts, it3d-store.ts, it3d-sheet.ts, it3d-request.ts, src/lib/sars-numbers.ts, src/lib/sa-id.ts, docs/sars/, src/app/charity-admin/[id]/receipts/sars/
Privacy	src/lib/crypto.ts, src/lib/privacy/erase.ts, src/lib/charity/appeals.ts, src/lib/email/, supabase/migrations/20261009000009, 20261020000001, src/app/account/data/
Charities	src/lib/charity/checklist.ts, src/app/apply/, src/app/admin/charities/[id]/actions.ts
Wording	src/app/terms/page.tsx, src/app/privacy/page.tsx, donate-flow.tsx
Decisions and open items	docs/decisions.md, docs/go-live-checklist.md, docs/launch-plan.md, docs/paystack-test-script.md
This briefing	docs/legal-briefing/ (README.md, build and render scripts, samples/)